

CHAPTER 19.

An Act to amend the Matrimonial Causes Act, 1857. [18th July 1923.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows :—

Right of
wife to
divorce hus-
band for
adultery.

1. It shall be lawful for any wife to present a petition to the court praying that her marriage may be dissolved on the ground that her husband has, since the celebration thereof and since the passing of this Act, been guilty of adultery : Provided that nothing contained herein shall affect or take away any right of any wife existing immediately before the passing of this Act.

Amend-
ment of
20 & 21 Viet.
c. 85. s. 27.

2. The provisions of the Matrimonial Causes Act, 1857, set out in the Schedule to this Act are hereby repealed.

Short title.

3. This Act may be cited as the Matrimonial Causes Act, 1923, and shall be construed as one with, and may be cited with, the Matrimonial Causes Acts, 1857 to 1919.

Section 2.

SCHEDULE.

Section twenty-seven the words "incestuous adultery or of bigamy with"; and the words "or of adultery coupled with such cruelty as, without adultery, would have entitled her to a divorce a mensâ et thoro, or of adultery coupled with desertion, without reasonable excuse, for two years or upwards;" and all the words in the proviso.
